

California Rules of Court Rule 8.137 sets forth the procedure for certifying a settled statement. CRC 8.137(c)(2) provides: “Appellants who are not represented by an attorney are encouraged to file their proposed statement on *Proposed Statement on Appeal (Unlimited Civil Case)* (form APP-014). The court may order an appellant to use form APP-014.”

The Court **ORDERS** Appellant to file and serve a Proposed Settled Statement on Appeal using Judicial Council Form APP-014 no later than 10 days after today’s hearing. Respondent will then have 20 days to serve and file proposed amendments pursuant to CRC 8.137(e). No later than 10 days after Respondent files proposed amendments or the time to do so expires, whichever is earlier, a party may request a hearing to review and correct the proposed statement pursuant to CRC 8.137(f). The Court will then follow the procedures set forth in CRC 8.137 as required.

The Motion is **GRANTED** in part, in that the Court orders the use of a Settled Statement. The Motion is **DENIED** with respect to the Proposed Settled Statement filed concurrently with the Motion. The parties are ordered to proceed as detailed above. This matter is set for review regarding status of the Settled Statement on **Monday, August 24, 2026, at 9:00 a.m. in Department 64.**

IN RE: FURTADO

CASE NUMBER: 26CV-0210015

Tentative Ruling on Petition for Change of Name: Petitioner Michelle Furtado seeks to change the name of her minor son. Proof of publication is on file. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file.

Petitioner has filed a Declaration detailing her efforts to locate and serve the father. The Court has considered the Declaration and finds that Petitioner has made reasonable efforts to locate and serve the father without success. The evidence establishes that the father is traveling extensively outside of the country with no known contact information or consistent residence address. Therefore, the Court finds that notice by publication is the best available method and is reasonably calculated to give actual notice to the non-consenting parent.

All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Continue Trial Date: Defendants Redding Senior Living, LLC, dba Hilltop Springs Senior Living; Mosaic Management, Inc. and Propero III Redding, LLC move for an order granting their motion to continue trial on the grounds that good cause exists pursuant to California Rules of Court Rule 3.1332(c) and (d). Plaintiffs Thomas Gerosin, Linda Mariano, Brenda Probst, and Michael Gerosin as individuals and as successors-in-interest to Betty Gerosin oppose the Motion.

Merits. “To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” CRC 3.1332(a). “Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” CRC 3.1332(c).

The matter is currently set for trial on November 17, 2026. Defendants argue there is good cause to continue the trial date because defense counsel is unavailable due to maternity leave, which is scheduled from September 25, 2026 through February 26, 2027. Defendants also cite the need to complete discovery. Defendants request a new trial date in May or June 2027. Plaintiffs argue that Plaintiff Thomas Gerosin, who is 91 years old, will be prejudiced by a continuance due to his age. Plaintiffs also argue Defendants have not been diligent in completing discovery.

Pursuant to CRC 3.1332(d) in ruling on a motion or application for continuance, the Court must also consider all the facts and circumstances that are relevant to the determination. These may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;
- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

The Court has considered all the facts and circumstances relevant to the determination, including the eleven factors listed above. The Court finds that Defendants have established good cause pursuant to CRC 3.1132(c)(3) due to trial counsel’s scheduled maternity leave. No previous continuances have been sought. Defendants also sufficiently explain that co-lead counsel will be unavailable to try the case on the current trial date due to three other trial dates in November and December of 2026. Nonetheless, the Court is mindful of the prejudice any continuance will cause for Plaintiff Thomas Gerosin, who is 91 years old. The Court notes that although there is evidence establishing Mr. Gerosin’s age in the record, there is no evidence in the record that Mr. Gerosin currently suffers from ill health that would make preference necessary to prevent prejudice to him.

The Court intends to set a new trial date at today’s hearing which will accommodate counsel’s scheduled leave, and will also put trial as soon as reasonably possible thereafter. This will set the trial date approximately four to five months after the currently scheduled date. The parties are ordered to come prepared with available trial dates in March and April of 2027.

The motion is **GRANTED**. The Mandatory Settlement Conference and Trial dates are **VACATED**. Defendants submitted a proposed Order that will be modified to reflect the Court's ruling. Appearances are necessary on today's calendar.

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion for Trial Preference: Plaintiff Thomas Gerosin, as an individual and successor in interest to Betty Gerosin, moves pursuant to Code of Civil Procedure section 36 for an order granting trial setting preference in this matter on the grounds that Plaintiff is over the age of 70, that Plaintiff has a substantial interest in this case as a whole, and that Plaintiff's health makes preference necessary to prevent prejudice to Plaintiff's interest in the lawsuit. Defendants oppose the Motion.

Objections to Evidence: Defendants object to Paragraphs 1-3 of the Declaration of Megan Yarnall. The objections are overruled.

Merits: A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. CCP § 36(a).

As to element 1, Plaintiff has established that Plaintiff has a substantial interest in the action as a whole. Plaintiff is the surviving husband of Betty Gerosin, decedent in this action. He asserts both survivorship and individual claims. He and his late wife allege that they were both directly harmed by Defendants' conduct.

As to element 2, Plaintiff has not established that the health of Plaintiff is such that preference is necessary to prevent prejudicing Plaintiff's interest in the litigation.

The evidence submitted in support of this motion consists of an attorney declaration. This is permitted under CCP 36.5: "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36." The declaration need not be from Plaintiff himself.

However, the declaration does not address "the medical diagnosis or prognosis of any party." Regarding Plaintiff's health, the attorney declaration only states: "As a nonagenarian [Plaintiff] faces health risks, physical limitations, and uncertainties that accompany advanced age." (Decl. Yarnall ¶ 2.) There is no specific evidence about any health problems of Plaintiff in particular, just about the risks associated with advanced age in general. No evidence or argument is presented regarding trial preference as a necessity to prevent prejudicing Plaintiff's interest, other than citing advanced age in general. The statute specifically requires the court to make a finding regarding the party's *health*. On this record, the Court does not have sufficient evidence to make a finding regarding Plaintiff's health. Therefore, the Motion is **DENIED**. Plaintiff's proposed order will be modified.